Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1364
Claimant:	Benjamin Ferguson
Adjuster:	Darin Tyler

November 10, 2023
First notice of loss came in from the insured's representative, who reported a side impact at a signalized intersection and a back strain to the claimant, who was the driver of the vehicle struck on the passenger side.

November 13, 2023
Confirmed that the driver is named on the policy and that the policy was in force on the date of loss, with nothing suggesting the damage happened beofre coverage started.

March 9, 2024
Police report and two statements confirm the claimant was in the vehicle at the time of impact, though no independent witness has come forward to describe the collision itself and no photographs of the scene have been provided.

April 10, 2024
Reviewed the vehicle file and found no earlier damage recorded on the vehicle, but the repair estimate covers more panels than the impact area clearly shows, so it is not yet clear whether all of the damage came from this impact.

May 3, 2024
Claimant's representative provided medical records showing a back strain treated with physiotherapy and medication; the reported injury is plausible for a crash of this type, and no earlier injury to the same body area appears in the records we hold.

May 4, 2024
Treatment has run somewhat longer than is typical for this injury, so I have asked the treating provider for a note explaining the continued care before setting any reserve.

May 6, 2024
The claimant has given the same account of the collision in every conversation so far, including the initial call, the recorded statement and the follow-up with the representative, and the details have not shifted.

June 8, 2024
Nothing independent confirms how the collision happened, so the file remains open pending the provider note and a review of the damage estimate against the impact pattern.

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Recorded Statement

Claim number:	C-1364
Statement of:	Benjamin Ferguson
Taken by:	Darin Tyler
Date:	October 27, 2023

Q: Thanks for taking the time to speak with me today. This call is being recorded for claim purposes. Can you state your full name for the record?

A: I'd rather just go by my first name for now, if that's okay.

Q: That's fine. Can you tell me where you were when the collision happened?

A: I was driving through the intersection in Baytown, Texas, heading east on the main road. The light had been green for me.

Q: Okay. What happened next?

A: A vehicle coming from the cross street on my right didn't stop. It hit the passenger side of my car. I felt a hard jolt and my car spun a little before it stopped.

Q: Did you see the other vehicle before impact?

A: Not really. I only noticed it a split second before it hit me. I braked, but there wasn't time.

Q: Were you able to get out of your vehicle afterward?

A: Yes, but I was sore right away. My lower back was tight and it's gotten worse since then. I went to urgent care the same day.

Q: Are you still experiencing pain?

A: Yes, it's mostly in the lower back and it gets stiff when I sit for long periods. I've been doing some stretches and taking over-the-counter medication.

Q: Did you have any back problems before the collision?

A: No, nothing that required treatment. I'd had a bit of stiffness after long shifts, but nothing like this.

Q: Is there anything else you'd like to add?

A: Just that I'm willing to provide my medical records and whatever else you need to process the claim.

Q: Thank you. We'll follow up in writing with next steps.